

Serial No. 01-13
Regular List

HIGH COURT OF MEGHALAYA
AT SHILLONG

Cont.Cas (C) No. 29 of 2020 with
Cont.Cas (C) No. 30 of 2020
Cont.Cas (C) No. 31 of 2020
Cont.Cas (C) No. 32 of 2020
Cont.Cas (C) No. 33 of 2020
Cont.Cas (C) No. 34 of 2020
Cont.Cas (C) No. 35 of 2020
Cont.Cas (C) No. 36 of 2020
Cont.Cas (C) No. 37 of 2020
Cont.Cas (C) No. 38 of 2020
Cont.Cas (C) No. 39 of 2020
Cont.Cas (C) No. 40 of 2020
Cont.Cas (C) No. 41 of 2020

Date of Order: 07.12.2020

M/S RNB Minerals And Chemicals Pvt. Ltd. & Anr.	Vs.	Kulkarni Narendra Vishwanath & 2 Ors.
M/S RNB Carbides And Ferro Alloys Ltd. (Unit I) & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
M/S RNB Carbides And Ferro Alloys Ltd. (Unit II) & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
M/S RKB Cements Pvt. Ltd. & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
M/S H.M. Cements Pvt. Ltd. & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
Bhagwati Syndicate Private Ltd.&Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
Pioneer Carbides Pvt. Ltd. & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
M/S NTL Steels & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
M/S Commercial Iron And Steel Co.Pvt.Ltd. & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
M/S Khasi Alloys Ltd. And Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.
M/S Nezone Alloys Ltd. & Anr.	Vs.	Kulkarni Narendra Vishwanath & Ors.

M/S Nalari Ferro Alloys Ltd. & Anr. Vs. Kulkarni Narendra
Vishwanath & Ors.

M/S Nezone Industries Ltd & Anr. Vs. Kulkarni Narendra
Vishwanath & Ors.

Coram:

Hon'ble Mr. Justice Ranjit More, Judge.

Appearance:

For the Petitioner/Appellant(s) : Mr. P.Shome, Adv.

For the Respondent(s) : Dr. N.Mozika, ASG with
Ms. S.A.Shallam, Adv.

1. Heard learned counsel appearing for the respective parties.
2. The petitioners in all the above contempt petitions challenged the notices dated 16-06-2020, 06-07-2020, 17-09-2020, 06-11-2020 and 07-11-2020 issued by respondent No. 3 directing them to return the Secondary and Higher Secondary Cess along with interest by filing separate writ petitions before this Court.
3. At the request of learned counsel for the respondent No. 3, I deferred the hearing of the writ petitions. Till returnable date, by way of interim relief I had stayed the impugned notices in the writ petitions. The interim relief granted on 16-06-2020 had been continued from time to time till today.
4. Respondent No. 1, during the pendency of the writ petitions issued fresh notice dated 07-11-2020 directing the petitioners in the above contempt petitions to return the Secondary and Higher Secondary Cess along with interest. The petitioners therefore, has approached this Court by way of above contempt petitions. The contention of the petitioner is that the impugned notices dated 07-11-2020 issued during the pendency of the writ petitions and especially when interim order is in force, and therefore amounts to contempt.
5. Respondent No. 1 is personally present in the Court. Dr. N.Mozika, learned Sr. counsel for the respondents, on instruction of respondent No. 1 make a statement that despite the notice dated 07-11-2020, no coercive action

shall be taken against the petitioners till the outcome of the writ petitions filed by the petitioners challenging the initial notices issued to them to return the Secondary and Higher Secondary Cess along with interest. Statement accepted as an undertaking to the Court.

6. In the light of the above statement, learned counsel for the petitioner fairly submit that the grievance of the petitioners no more survives. Contempt petitions accordingly stands disposed of.

Judge

Meghalaya
07.12.2020
"Samantha PS"

